

End User License Agreement

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6. Limitation of Liability

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NOTWITHSTANDING ANY DAMAGES THAT YOU MIGHT INCUR FOR ANY REASON WHATSOEVER (INCLUDING, WITHOUT LIMITATION, ALL DAMAGES REFERENCED HEREIN AND ALL DIRECT OR GENERAL DAMAGES IN CONTRACT OR ANYTHING ELSE) TIG'S TOTAL CUMULATIVE LIABILITY ARISING FROM OR RELATED TO THE SOFTWARE, WHETHER IN CONTRACT OR TORT OR OTHERWISE, SHALL NOT EXCEED THE FEES ACTUALLY PAID BY YOU TO TIG. THIS LIMITATION IS CUMULATIVE AND WILL NOT BE INCREASED BY THE EXISTENCE OF MORE THAN ONE INCIDENT OR CLAIM.

7. **Governing Law.**

The validity, construction and performance of this EULA shall be governed by the laws of England and Wales.

8. **Assignment.**

Neither the rights nor the obligations arising under this EULA are assignable by you, and any such attempted assignment shall be void and without effect.

9. **Entire Agreement/Severability.**

This EULA represents the entire agreement between you and TIG with respect to the Software and its terms supersede all prior or contemporaneous oral or written communications, proposals, and representations with respect to the Software or any other subject matter covered by this EULA. If any provision of this EULA is unenforceable, such provision will be changed and interpreted to accomplish the objectives of such provision to the greatest extent possible under applicable law and the remaining provisions will continue in full force and effect.

10. **Waiver.**

All waivers by TIG will be effective only if in writing. Any waiver or failure by TIG to enforce any provision of this EULA on one occasion will not be deemed a waiver of any other provision or of such provision on any other occasion.

11. **General.**

The Software is deemed irrevocably accepted upon your use of the Software. TIG will have no responsibility to provide maintenance or support services with respect to the Software. The parties are independent contractors, are not joint venturers or partners and have no employer-employee relationship.

The headings of Clauses of this EULA are for convenience and are not to be used in interpreting this EULA.

Except as otherwise provided in this Clause, no amendment to this EULA will be valid unless it is in writing hand-signed by the parties.

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